

Master Agreement for Supplier Services - Executed 2022

Calder Financial Group plc and Acme Technologies, Inc. | Calder Legal Template MA-2021 rev.1 | CLM-2022-Calder

THIS MASTER AGREEMENT FOR SUPPLIER SERVICES was made on 14 March 2022 BETWEEN Calder Financial Group plc (the **Company**) and Acme Technologies, Inc. (the **Supplier**). This Agreement was executed by the parties and performed to its term.

Drafted on the Company's standard form. The amendments at Article 19 and clause 22.4 below were agreed with Company Legal during negotiation and are recorded in Schedule 1.

ARTICLE 2 - APPOINTMENT AND TERM

2.2 This Agreement commenced on the date above and continued for twenty-four months. The Company was entitled to extend for successive twelve-month periods on written notice.

ARTICLE 6 - CHARGES AND PAYMENT

6.1 The Company paid the charges set out in each Statement of Work within sixty days of receipt of a valid and undisputed invoice. Aggregate charges for the term were GBP 1,400,000.

6.2 The Company's right of set-off was limited, **as amended**, to sums due and payable under this Agreement only.

ARTICLE 19 - INDEMNITIES

19.1 The Supplier indemnified the Company against Losses arising out of any breach of this Agreement by the Supplier, any negligence or wilful misconduct of its personnel, any claim that the Deliverables infringed a third party's intellectual property rights, and any security incident affecting Company Data in the Supplier's control.

19.2 **As amended.** The indemnities in clause 19.1 are **subject to the financial cap in clause 22.4**, save that the cap does not apply to sub-clauses 19.1(c) (intellectual property infringement) and 19.1(d) (security incident affecting Company Data), which remain uncapped.

ARTICLE 22 - GENERAL PROVISIONS

22.4 **Responsibility for Losses. As amended.** Each party is responsible for the Losses it causes. The Supplier's aggregate responsibility to the Company under or in connection with this Agreement **shall not exceed the charges paid or payable in the 24 months preceding the event giving rise to the claim.** Neither party is responsible to the other for loss of profit, loss of revenue, loss of anticipated savings or reputational harm, whether direct or indirect. This clause does not limit liability for fraud, or for the uncapped sub-clauses identified in clause 19.2.

22.5 **Governing law.** England and Wales, exclusive jurisdiction of the courts of England and Wales.

SCHEDULE 1 - AGREED AMENDMENTS TO THE COMPANY STANDARD FORM

The following departures from the Company's standard form were agreed by Company Legal and applied to the executed text above.

Clause	Standard form	As executed
19.2	Indemnities not subject to any limitation elsewhere	Subject to the 22.4 cap, except IP and data-breach claims
22.4	No financial cap on Supplier responsibility	Aggregate cap at 24 months of charges
6.2	Set-off against any sum owed by Supplier or its affiliates	Set-off limited to sums due under this Agreement

SIGNATURES

Executed by the parties on 14 March 2022.

CALDER FINANCIAL GROUP PLC	ACME TECHNOLOGIES, INC.
By: /s/ Priya Raghunathan	By: /s/ Elena Martinez
Name: Priya Raghunathan	Name: Elena Martinez
Title: Group General Counsel	Title: Chief Revenue Officer
Date: 14 March 2022	Date: 14 March 2022

This synthetic executed agreement is designed for contract-lifecycle demonstrations. Names, terms, and provisions are fictional and are not legal advice.